

	as to Def 520 Capital Fund 2, LLP	seeks to withdraw as well, the motion does not identify the law firm.
7	Manighalam v. Eidemiller 2023-01342618 Motion for Judgment on the Pleadings 1st Amended Complaint	Defendants Exp Realty of California, Inc. and Manuel Dominguez move for judgment on the pleadings as to the first, second, and third causes of action in Plaintiffs' first amended complaint. Defendants Exp Realty of California, Inc. and Manuel Dominguez's Motion for Judgment on the pleadings is DENIED. First cause of action - Fraud "The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638. A seller's broker and agent owe a statutory duty to the buyer of the residential property to conduct a reasonably competent and diligent visual inspection of the property and disclose all facts materially affecting the value or desirability of the property that an inspection would reveal. (<i>Leko v. Cornerstone Building Inspection Service</i> (2001) 86 Cal.App.4th 1109, 1115-1116 (citing Civ. Code, §§ 2079, subd. (a), 2079.16; see also Civ. Code, § 1106).) " A selling broker has no obligation to purchasers to investigate public records or permits pertaining to title or use of the property." (<i>Field v. Century 21 Klowden-Forness Realty</i> (1998) 63 Cal.App.4th 18, 24 (citing Civ. Code, § 2079.3).) While Plaintiffs allege the BBQ structure and its components were visible during the inspection period, they do not allege how the alleged defects with the <i>functionality</i> of the BBQ, including its leaking gas line and the fact its electric line and outlet and gas burner were not working were visible such that they would have been identified during Defendants' "reasonably competent and diligent visual inspection." With respect to the issue of smoke, Defendants contend their inspection was limited to the interior of the property. Plaintiffs allege, however, "there was constant smoke from the next-door neighbor into the Property." (FAC ¶ 15 [emphasis added].) While Defendants further contend this issue was not observable upon a visual inspection of the property (Mtn. at 19:28-20:2), Plaintiffs allege the "constant smoke from the neighbor's property [was] visually detectable during their inspection of the Property." (FAC ¶ 29.)

	Finally, Plaintiff alleges the alleged fraud was committed by Dominguez and EXP Realty. (FAC ¶¶ 11, 12, 18, 26, 29, 32.) Accordingly, the Court DENIES Defendants’ motion as to the first cause of action. Second cause of action for fraudulent concealment “[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (<i>Boshma v. Home Loan Center, Inc.</i> (2011) 198 Cal.App.4th 230, 248.) As discussed above, Plaintiffs sufficiently allege Defendants’ concealment of the issue of the smoke coming into the property following Defendants’ visual inspection. Plaintiffs allege the concealment was intended to “induce Plaintiffs into purchasing the Property,” (FAC ¶ 28), that had Plaintiffs known about the property’s issues, including the smoke, it would not have purchased the property, and that Plaintiffs suffered financial harm and physical injuries as a result of Defendants’ actions. (FAC ¶ 22, 23, 29.) Accordingly, the Court DENIES Defendants’ motion as to the second cause of action. Third case of action Negligent misrepresentation The elements of a negligent misrepresentation are (1) the misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another’s reliance on the fact misrepresented, (4) justifiable reliance, and (5) resulting damage. (<i>Borman v. Brown</i> (2021) 59 Cal.App.5th 1048, 1060.) “Negligent misrepresentation does not require knowledge of falsity.” (Ibid.) “[T]he same elements of intentional fraud also comprise a cause of action for negligent misrepresentation, with the exception that there is no requirement of intent to induce reliance.” (<i>Tenet Healthsystem Desert, Inc. v. Blue Cross of California</i> (2016) 245 Cal.App.4th 821, 845.) As Plaintiffs sufficiently plead a cause of action for intentional fraud as
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		discussed above, Plaintiffs also sufficiently plead a cause of action for negligent misrepresentation. (See <i>ibid.</i>) Accordingly, the Court DENIES Defendants' motion as to the third cause of action.
8	Ayoubi v. National General Premier Inc. Co. 2024-01394713 Motion for Summary Judgment/Adjudication	Defendant National General Premier Insurance Company's Motion for Summary Judgment/Adjudication is CONTINUED to 7/27/26 at 1:45 p.m. in this Department. The Court's electronic docket reflects that on 6/22/26, Plaintiff attempted to file a request for dismissal as to moving Defendant, but the filing was rejected by the Court Clerk for the following reason: "The attorney or party information is incomplete or inconsistent with our records. State Bar Number was not listed in the document header. Please ensure that all fields match our records." Plaintiff shall promptly file a revised request for dismissal, after which the Court will take the continued hearing off calendar.
9	Hassanin v. RDS Real Estate LLC 2023-01335896 Motion for Summary Judgment/Adjudication	Defendants RDS Real Estate, LLC and Ibrahim Ghanem's motion for summary judgment or in the alternative (1) motion for summary adjudication or (2) motion for Judgment on the pleadings is GRANTED. Leave to amend is DENIED. Defendants' request for judicial notice is GRANTED. (See Evid. Code, § 452, subd. (d).) Defendants' objections are SUSTAINED. Defendants seek summary judgment on the grounds that plaintiff Mohamed Hassanin, DC ("Hassanin") does not have standing to assert the causes of action alleged in the operative Second Amended Complaint ("SAC") because he is not a party to the Agreement that forms the basis of the SAC. A corporation exists as a separate legal entity, distinct from its owners/shareholders, and as a result, owners/shareholders have no personal or individual right of action against third persons for a wrong or injury to the corporation. (<i>Grosset v. Wenaas</i> (2008) 42 Cal.4th 1100, 1108; <i>Jones v. H.F. Ahmanson & Co.</i> (1969) 1 Cal.3d 93, 107.) Such claims must be brought by the corporation itself. (See Code Civ. Proc. §367 [every action must be prosecuted in the name of the real party in interest].) If the corporation fails or refuses to do so, a stockholder may bring a derivative suit on behalf of the corporation. (<i>Grosset</i>, <i>supra</i>, 42 Cal.4th at p. 1108; <i>Jones</i>, <i>supra</i>, 1 Cal.3d at p. 107.) Defendants' material facts establish the following: Hassanin filed the original complaint on behalf of himself individually arising from a written Marketing Services Agreement (the "Agreement"). (UMF Nos. 1-2.) The complaint alleges the